

PREVENTION OF SEXUAL HARASSMENT (POSH) & ANTI-HARASSMENT POLICY

Version 3.1 · Effective 1 April 2026 · Complies with the Sexual Harassment of Women at Workplace Act, 2013 (India) and local equivalents

ARTICLE 1 - SCOPE

1.1 All employees, interns, contractors, visitors and clients, on company premises, at client sites, at offsites and events, and in digital channels (Slack, email, video calls).

ARTICLE 2 - WHAT COUNTS AS HARASSMENT

2.1 Unwelcome physical contact or advances.

2.2 Demands or requests for sexual favours.

2.3 Sexually coloured remarks, jokes, images or messages.

2.4 Quid pro quo or hostile-environment conduct.

2.5 Bullying, intimidation, or discriminatory remarks based on protected characteristics.

ARTICLE 3 - INTERNAL COMMITTEE (IC)

3.1 The Presiding Officer is a senior woman employee.

3.2 At least 2 employee members and 1 external member from an NGO or legal background.

3.3 At least half the members are women.

3.4 Contact: ic@nimbus.example. The committee is reconstituted every 3 years.

ARTICLE 4 - COMPLAINT PROCESS

4.1 File a written complaint with the IC within 3 months of the incident. This can be extended by 3 months for valid reasons.

4.2 Conciliation happens only at the complainant's request, and never involves a monetary settlement.

4.3 The IC completes its inquiry within 90 days and issues a report within 10 days after that.

4.4 Management acts on the recommendations within 60 days.

4.5 Either party may appeal within 90 days.

ARTICLE 5 - INTERIM RELIEF

5.1 Transfer, leave of up to 3 months, or a change of reporting line during the inquiry.

ARTICLE 6 - CONFIDENTIALITY AND NON-RETALIATION

6.1 Identities and proceedings are confidential. Retaliation or a knowingly false complaint leads to disciplinary action.

ARTICLE 7 - AWARENESS

7.1 Mandatory e-learning at joining and annually. IC members attend annual training. The company files its annual report with the District Officer (India) by 31 January.

ARTICLE 8 - PURPOSE

8.1 Provide a safe, respectful workplace free of sexual harassment, discrimination and bullying, and a fair, time-bound redress mechanism.

ARTICLE 9 - EXAMPLES OF PROHIBITED CONDUCT

- 9.1** Repeated requests for dates after a clear "no".
- 9.2** Comments on someone's body, clothing or private life.
- 9.3** Sharing explicit memes in team chats.
- 9.4** Promising a better rating or project in exchange for personal favours.
- 9.5** Excluding someone from meetings because of their gender or religion.
- 9.6** Mocking accents.

ARTICLE 10 - FILING A COMPLAINT: WHAT TO INCLUDE

- 10.1** Names of the complainant and respondent.
- 10.2** Date(s), time(s) and place or channel.
- 10.3** A description of the conduct.
- 10.4** Witnesses, if any.
- 10.5** Supporting evidence (screenshots, emails).
- 10.6** An anonymous complaint cannot be formally inquired into, but HR will act on it preventively.

ARTICLE 11 - INQUIRY PRINCIPLES

- 11.1** Principles of natural justice: both parties are heard, and evidence is shared with the respondent. The complainant's identity is protected in documents where possible.
- 11.2** No legal practitioners during IC proceedings (India).
- 11.3** Proceedings are recorded, and minutes are signed by the parties.

ARTICLE 12 - POSSIBLE OUTCOMES

- 12.1** Written apology
- 12.2** Warning
- 12.3** Withholding of promotion or increment
- 12.4** Counselling
- 12.5** Community service
- 12.6** Transfer
- 12.7** Termination
- 12.8** Deduction from salary as compensation to the aggrieved person, where the law allows

ARTICLE 13 - BYSTANDER RESPONSIBILITY

- 13.1** If you witness harassment, you are encouraged to intervene safely, support the affected person, and report it.

ARTICLE 14 - OUTSIDE INDIA

- 14.1** The same process applies, with local law adjustments. For example, in the US the complaint may also go to HR under Title VII; in Germany it goes to the AGG complaints office (Beschwerdestelle).

ARTICLE 15 - REVISION HISTORY

15.1 3.1 (2026): Digital-channel harassment explicitly covered.

15.2 3.0 (2023): IC reconstituted.